

1 ENGROSSED HOUSE
2 BILL NO. 3881

By: Cantrell of the House

and

Thompson of the Senate

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5
6 [vape products - Alternative Nicotine Products
7 Regulatory Act of 2026 - manufacturing, labeling,
8 marketing, and safety requirements - attestation -
9 penalties and suspension - Attorney General -
10 Alternative Nicotine Products Compliance Fund -
11 noncodification - codification - effective date]
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14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. NEW LAW A new section of law not to be
16 codified in the Oklahoma Statutes reads as follows:

17 This act shall be known and may be cited as the "Alternative
18 Nicotine Products Regulatory Act of 2026".

19 SECTION 2. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 1-229.50 of Title 63, unless
21 there is created a duplication in numbering, reads as follows:

22 As used in this act:

23 1. "Alternative nicotine product" means any noncombustible
24 product that contains nicotine and that is intended for human

1 consumption, whether chewed, absorbed, dissolved, ingested, or
2 consumed by other means;

3 2. "Department" means the Department of Revenue;

4 3. "E-liquid" means a solution that:

- 5 a. contains propylene glycol, vegetable glycerin,
- 6 nicotine, nicotine salts, flavorings, or both, and
- 7 b. is intended to be used in an electronic cigarette.

8 E-liquid does not include cannabis, THC, CBD, or hemp as defined
9 under the laws of this state;

10 4. "Manufacturing" means the process by which an alternative
11 nicotine product is fabricated, assembled, packaged or labeled, and
12 is sealed in final packaging intended for consumer use;

13 5. "Minor" means an individual who is less than twenty-one (21)
14 years of age;

15 6. "Packaging" means any receptacle that contains a finished
16 alternative nicotine product;

17 7. "Sale" or "sell" means to exchange or otherwise furnish any
18 alternative nicotine product to any individual of legal age for
19 monetary value; and

20 8. "Tamper-evident package" means a package having at least one
21 indicator or barrier to entry that, if breached or missing, can
22 reasonably be expected to provide visible evidence to consumers that
23 tampering has occurred.

1 SECTION 3. NEW LAW A new section of law to be codified

2 in the Oklahoma Statutes as Section 1-229.51 of Title 63, unless
3 there is created a duplication in numbering, reads as follows:

4 A. Manufacturers, dealers, wholesalers, and retailers shall
5 comply with the following requirements:

6 1. An e-liquid bottle shall use a child-proof cap that has the
7 child-resistant effectiveness set forth in the federal poison
8 prevention packaging standards, 16 CFR 1700.15(b)(1);

9 2. An e-liquid bottle or an electronic cigarette that contains
10 e-liquid shall use a tamper-evident package. The tamper-evident
11 package feature shall be designed to remain intact when handled in a
12 reasonable manner during the manufacture, distribution, and retail
13 display of the e-liquid bottle;

14 3. The label on an e-liquid bottle, electronic cigarette, or
15 alternative nicotine product shall meet the nicotine addictiveness
16 warning statement requirements set forth in 21 CFR 1143.3; and

17 4. The package containing the alternative nicotine product
18 shall contain the ingredients in the product as well as the name of
19 the manufacturer or wholesaler, along with the address of the
20 manufacturer or wholesaler, firmly affixed to or printed on the
21 package for tracking purposes. A scannable bar code or QR code
22 located on the package may meet this requirement.

23 B. A manufacturer, dealer, wholesaler, or retailer of an
24 alternative nicotine product shall be prohibited from selling any

1 alternative nicotine product that uses in the name of the product,
2 the labeling of the product, the packaging of the product, or in its
3 marketing materials:

4 1. The terms "candy", "candies", or variants in spelling such
5 as "kandy" or "kandeez";

6 2. The terms "bubble gum", "cotton candy", "gummy bear", "gummy
7 worm", "lollipop", or other variants of these terms;

8 3. References to cartoons, cartoon characters, superheroes,
9 television shows, video games, and movies, or other similar
10 characters or references;

11 4. References or utilizes trade dress, trademarks, or other
12 related imagery that imitate or replicate trade dress, trademarks,
13 or other imagery of food brands or products that have been primarily
14 marketed to minors such as brands of breakfast cereals, cookies,
15 juice drinks, soft drinks, ice creams, and frozen pops; and

16 5. References or utilizes trade dress, trademarks, or other
17 related imagery that imitate or replicate trade dress, trademarks,
18 or other imagery of school supplies such as USB drives or
19 highlighters, smart phones or smart watches, headphones, any item of
20 clothing, or toy, video game devices or phone app integration
21 features.

22 SECTION 4. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 1-229.52 of Title 63, unless
24 there is created a duplication in numbering, reads as follows:

1 A. A manufacturer of alternative nicotine products for sale in
2 the state shall provide an attestation under the penalty of perjury
3 to the Attorney General on forms provided by the Attorney General's
4 Office of the following:

5 1. The manufacturer has received a marketing granted order for
6 the alternative nicotine product from the United States Food and
7 Drug Administration (FDA) in accordance with 21 U.S.C. 387(j); or

8 2. The manufacturer has submitted a premarket tobacco
9 application for the alternative nicotine product and has received a
10 submission tracking number (STN) from the FDA in accordance with 21
11 U.S.C. 387(j) and the application remains under review with the FDA
12 for more than one hundred eighty (180) days, the FDA has issued a no
13 marketing order for the alternative nicotine product, but the agency
14 or a federal court has issued a stay order or injunction during the
15 pendency of the manufacturer's appeal of the no marketing order, or
16 the order has been appealed either to the FDA or a challenge to the
17 order filed with a federal court and the appeal or challenge is
18 still pending.

19 B. The consumable material of the alternative nicotine product
20 shall be manufactured, processed, blended, or filled in the United
21 States by January 1, 2028, or such product shall be removed from the
22 list of products that are legal to sell.

23 C. Each manufacturer filing an attestation with the Attorney
24 General shall pay an initial fee of Five Thousand Dollars

1 (\$5,000.00) and a renewal fee annually of Two Thousand Five Hundred
2 Dollars (\$2,500.00).

3 D. The manufacturer shall notify the Attorney General within
4 thirty (30) days of any material change to the attestation,
5 including:

6 1. If the FDA has issued a market order or other authorization;

7 2. If the FDA has issued a market denial order;

8 3. If the FDA or a federal court has issued a stay or
9 injunction during pendency of the no marketing order; or

10 4. If the manufacturer has appealed to the FDA or filed a
11 challenge with a federal court and the appeal or challenge is still
12 pending.

13 SECTION 5. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 1-229.53 of Title 63, unless
15 there is created a duplication in numbering, reads as follows:

16 A. The Department shall assess a civil penalty against a
17 manufacturer, dealer, wholesaler, or retailer for a violation of
18 this act in an amount that does not exceed Five Thousand Dollars
19 (\$5,000.00). A civil penalty shall be assessed in addition to other
20 penalties allowed under this act.

21 B. The Attorney General is authorized to investigate and
22 enforce violations of Sections 3 and 4 of this act. Upon
23 determining that a manufacturer, dealer, wholesaler, or retailer has
24 violated any provision of Section 3 or 4 of this act, the Attorney

1 General shall bring a civil action in any court of competent
2 jurisdiction to either: seek injunctive relief restraining or
3 enjoining any manufacturer, dealer, wholesaler, or retailer from
4 continuing to engage in activities that violate Section 3 or 4;
5 recover civil penalties of up to Ten Thousand Dollars (\$10,000.00)
6 per violation; or obtain appropriate relief to protect the public
7 interest.

8 C. Civil penalties collected under this act shall be deposited
9 in the Alternative Nicotine Products Compliance Fund.

10 SECTION 6. NEW LAW A new section of law to be codified
11 in the Oklahoma Statutes as Section 1-229.54 of Title 63, unless
12 there is created a duplication in numbering, reads as follows:

13 A. The Alternative Nicotine Products Compliance Fund is hereby
14 created as a special fund under state law.

15 B. The Alternative Nicotine Products Compliance Fund shall be
16 utilized by the Department and Attorney General for enforcement of
17 this act.

18 SECTION 7. This act shall become effective November 1, 2026.
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1 Passed the House of Representatives the 24th day of March, 2026.

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4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the ____ day of _____, 2026.

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9 Presiding Officer of the Senate